



United States Department of Agriculture

Research, Education, and Economics
Agricultural Research Service

APPROVED

By Alessandra at 10:14 am, May 07, 2021

May 7, 2021

City Clerk's Office
2101 O'Neil Avenue, Room 101
Cheyenne, Wyoming 82001

Dear Sir or Madam:

SUBJECT: Notice of Renewal: Lease Number 57-82HW-1-0171, 1,998 Acres of Land
City Contract #150
Annual rent is \$1.00, receipt of which is acknowledged

In accordance with the terms of the above-referenced lease, the United States of America, acting by and through the Agricultural Research Service, is sending this notice of renewal to provide you with 30 days' notice of its option to renew said lease for the period of 10/1/2021 through 9/30/2022. All conditions and provisions of the said lease and any amendments thereto, are hereby extended to cover the renewal option period.

The considerations, acts, promises, agreements, and provisions to be executed and performed by each party to said lease shall remain in full force and effect for the above-referenced period. This renewal is conditioned upon the passages of an applicable appropriation or authorization by Congress from which this expenditure may be made and shall not obligate the United States upon failure of Congress to so act.

If you concur with extending the renewal for one more period as listed above, please initial the concurrence line below and retain a copy for your files before returning this notice to the address below.

Lessor Concurrence: _____ (initials)

Sincerely,

LISA BAETE Digitally signed by LISA BAETE
Date: 2021.05.07 10:05:18 -06'00'

LISA M. BAETE
Lease Contracting Officer

DEPARTMENT OF AGRICULTURE

LEASE

Between

CITY OF CHEYENNE, WYOMING,

and

THE UNITED STATES OF AMERICA,

.....

1. This lease, made and entered into this first day of June, in the year one thousand nine hundred and twenty-eight, by and between the CITY OF CHEYENNE, Wyoming, for itself, its successors and assigns, hereinafter called the lessor, and the UNITED STATES OF AMERICA, hereinafter called the Government:

WITNESSETH: The parties hereto for the consideration herein-after mentioned, covenant and agree as follows:

2. The lessor hereby leases to the Government the following described premises, viz:-

All of Sections 8, 9 and 16, in Township 14 N., R. 67 W., of the 6th P.M., with the exception of the following described tracts, to-wit:

(1) Southeast quarter of Section 9, Township 14 North, Range 67 West of the 6th P.M.

(2) Also that tract of land located in the northeast quarter (NE $\frac{1}{4}$) of Section 16, Township 14 North of Range 67 West, containing approximately four (4) acres, and described by metes and bounds as follows, to-wit: Beginning at the Northeast corner of Section 16, Township 14 N., Range 67 West of the 6th P.M., thence in a southerly direction along the east boundary of said section a distance of 417.4 feet; running thence in a westerly direction at an angle of ninety degrees a distance of 417.4 feet; running thence in a northerly direction at an angle of ninety degrees to the intersection with the north boundary line of Section 16, Township 14 N., Range 67 West of the 6th P.M., running thence in an easterly direction along the north boundary of Section 16, Township 14 N., Range 67 West of the 6th P.M., to the point of beginning, and being the same land as to said four acre tract as was conveyed by the said City of Cheyenne to J.V. Griffin by deed dated March 14th, 1911, which deed was recorded in the records in the office of the Register of Deeds of Laramie County, Wyoming, in Book 174, at pages 68 and 69 thereof

(3) Also beginning at a point on the North line of Section 16, T. 14 North, Range 67 West of the 6th P.M., said point being 2480 feet east of the northwest corner of said Section 16, thence S. 0° 03' East, 1680 feet, thence North 89° 57' East, 900 feet, thence North 0° 03' West, 1680 feet to a point on the north line of Section 16, thence west along the north line of Section 16, 900 feet to the point of beginning, containing approximately 34.71 acres, reserved by the said City of Cheyenne for its waterworks system, as the said lands are now handled and to such reasonable extension as shall be agreed upon by the parties hereto, of said waterworks system, as may be reasonably necessary for the purpose of supplying water to the City of Cheyenne and to Fort D.A. Russell, provided, that in no event shall the area used for waterworks by the lessor exceed 40 acres.

And also grants a tract of land in Section 22, T. 14 N., R. 67 W., of the 6th P.M., known as Lot 1, consisting of the NW $\frac{1}{4}$ of the NW $\frac{1}{4}$.

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containing 40 acres, and an area of land lying between the East boundary of the NW¹/₄ of the NW¹/₄ and the West boundary of the Fort Russell Reservation in the NE¹/₄ of the NW¹/₄, containing approximately 5.07 acres, the said tract totaling 45.07 acres of land, being that part of a conveyance made to the City of Cheyenne by the United States under patent dated December 14, 1914; all lands in above sections being and lying in Laramie County, Wyoming; subject, however, to the following reservations:

The lessor hereby reserves unto itself the right at all times to go upon the lands herein leased for the purpose of maintaining, installing and repairing its water system.

To be used exclusively as the Central Great Plains Field Station.

3. TO HAVE AND TO HOLD the said premises with their appurtenances, excepting such railway rights-of-way as may now exist thereon, for the term beginning June first, nineteen hundred and twenty-eight and ending with June thirtieth, nineteen hundred and twenty-nine, together with all ways, easements, rights and waters belonging thereto; and the lessor covenants

That on or before June thirtieth, nineteen hundred and twenty-eight it will acquire by purchase or have instituted condemnation proceedings on SE¹/₄ of the SE¹/₄ of Section 9, T. 14, R. 67 W., and approximately 4 acres in the NE corner of the NE¹/₄ of Section 16, T. 14, R. 67 W., hereinbefore mentioned, for park purposes, in accordance with the resolution of the City Council of Cheyenne, Wyoming, dated May 18, 1928;

That the lessor hereby grants to the Government the free use, for irrigation purposes, of all waste waters from the filtration plant of the City water works on Section 16 aforesaid, including wash waters and regulatory wastes; that the lessor will permit the Government to construct and maintain receiving boxes or reservoirs at the waste outlets when those occur within the City's waterworks reservation on Section 16 aforesaid, provided that these structures shall not interfere with the operation of the City's water works system; that the lessor agrees that the waste waters so released to the Government, to the extent approximately of the present volume of said waste water, i.e. 450 acre feet per annum, shall not be impaired for agricultural use by any chemical treatment incident to the operation of the City water works.

The Government shall not assign this lease in any event, and in the event the lands shall be used for any purpose other than a field station, this lease shall immediately terminate, and the property revert to the lessor.

This lease may, at the option of the Government, be renewed at a rental of One Dollar (\$1.00) per annum, and otherwise upon the terms and conditions herein specified, provided notice be given in writing to the lessor at least thirty days before this lease would expire; PROVIDED, that no renewal thereof shall extend the period of occupancy of the premises beyond the thirtieth day of June, Two Thousand One Hundred and Twenty-six.

The Government shall have the right, during the existence of this lease, to make alterations, attach fixtures, and erect additions, structures and improvements on or upon the premises hereunto leased; and said premises, additions, structures and improvements shall remain the property of the Government and may be removed therefrom by the Government prior to the termination of this lease.

The Government shall pay the Lessor for the premises, rent at the following rate: One Dollar (\$1.00) per annum. Payment shall be made at the end of each Fiscal Year, from any available appropriation.

No member of or delegate to Congress or Resident Commissioner shall be admitted to any share or part of this lease or to any benefit to arise therefrom. Nothing, however, herein contained shall be construed to extend to any incorporated Company, if the lease be for the general benefit of such

THE CITY CLERK.

Corporation or Company.

IN WITNESS WHEREOF, the parties hereto have hereunto subscribed their names as of the date first above written.

CITY OF CHICAGO,
Lessor,

By *Edw. Riney*
Mayor.

Edw. Riney

Edw. Riney
Signature of Lessor.

ATTEST:
Franklin A. H.
City Clerk

THE UNITED STATES OF AMERICA

By *R. H. Murphy*
Acting Secretary of Agriculture.
AmB